



File No.: EXP202313983

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO ADMISSION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 5, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against RESIDENTIAL QUALITY ENJOY, S.L. (hereinafter, RESIDENTIAL QUALITY ENJOY), through the agreement that is transcribed:

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File No.: EXP202313983 (PS/00138/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 21, 2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to RESIDENTIAL QUALITY ENJOY, S.L. (hereinafter, RESIDENTIAL QUALITY ENJOY) with NIF B72865363.

The facts brought to the attention of this authority:

The complainant states that they contracted accommodation in a tourist apartment with the defendant entity without formalizing a contract in this regard, and were requested, via WhatsApp, to send images of the ID cards of the guests, including that of a minor, without any information regarding data processing being provided.

They indicate that they have not signed any consent regarding data processing and that, upon receiving the keys to the apartment, they were made to sign a document of which they were not offered a copy.

Along with the complaint, they provide an email in which a representative of the defendant entity requests the ID cards of the guests of the contracted apartment.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to RESIDENTIAL QUALITY ENJOY for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The defendant party responded to the transfer and request for information on November 7, 2023, although the information provided infers a possible violation of data protection regulations.

In their response, RESIDENTIAL QUALITY ENJOY describes circumstances related to issues with the payment of the reservation, which are unrelated to the subject of the complaint raised by the complainant. Additionally, they provide a WhatsApp conversation with the complainant, in which they are asked to send “a photo of the ID cards of the people staying in the apartment.” RESIDENTIAL QUALITY ENJOY states that “through the email in response to the automatic messages from the app, they sent us the ID cards.” Finally, the following measures are communicated: an informative poster about data protection in the accommodation, information will be sent to guests regarding data protection in the first contact made with them, and they will provide a copy of the rental contract, either directly on paper at the accommodation or subsequently by email.

THIRD: On November 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived, in accordance with the provisions established in Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as:

"any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as:

"any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

For its part, Article 4.7) of the GDPR defines the "data controller" or "controller" as:

"the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law."

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In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is

evidence of the processing of personal data, since RESIDENTIAL QUALITY ENJOY carries out, among other processing activities, the collection and communication of personal data of natural persons: ID document number, type of document (DNI in this case), date of issuance of the document, first surname, second surname, name, sex, date of birth, and address, among others, data that are included in the image of the DNI.

RESIDENTIAL QUALITY ENJOY carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Within the principles of processing provided for in Article 5 of the GDPR, in its section 1.c) the principle of data minimization is guaranteed.

IV

Legal Framework for Guest Registration Books and Communication of Guest Data to Security Forces and State Security Bodies

The regulations governing guest registration books and entry reports in hospitality establishments, as well as the obligation to communicate the information contained in the registration sheets to the Security Forces and State Security Bodies, are primarily constituted by Organic Law 4/2015, of March 30, on the protection of citizen security (hereinafter, LO 4/2015), and Royal Decree 933/2021, of October 26, which establishes the obligations for documentary registration and information of natural or legal persons engaged in hospitality and motor vehicle rental activities (hereinafter, RD 933/2021). Article 24 of LO 4/2015 provides in its first section the following:

“Natural or legal persons engaged in activities relevant to citizen security, such as those of hospitality (...) shall be subject to the obligations of documentary registration and information in the terms established by the applicable provisions.”

These obligations are currently developed by the aforementioned RD 933/2021, whose Article 2 establishes the following:

“Article 2. Definitions.

For the purposes of this royal decree, the following are considered:

1. Hospitality activities: those carried out, professionally or not, with the aim of providing, in exchange for a price, consideration, or compensation, accommodation or space for overnight stays to persons, with or without other complementary services. In any case, the following activities are included in this definition:

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a) Those carried out by commercial establishments open to the public integrated into this sector in accordance with the regulations issued by the competent administration. This concept includes hotels, hostels, guesthouses, boarding houses, rural tourism establishments, or analogous entities.

b) [...]

3. Obligated subjects: natural or legal persons who develop or mediate in the execution of the described activities.” (the underlining is ours).

For its part, Article 4.3 of RD 933/2021 states that: “The forms and sheets shall be provided by the accommodation or vehicle rental establishment, which shall be responsible for the accuracy of the data recorded therein, so that they match the documents or systems that verify the identity of the persons, which must be exhibited or provided by the users of these services.”

In section 3 of Annex I.A of RD 933/2021, the data of the guests that must be included in the “Registration Sheet” that the responsible entity of the accommodation establishment must submit to the State Security Forces and Corps is specified. These are:

“a) Name.

b) First surname.

c) Second surname.

d) Gender.

- e) Identity document number.
- f) Document support number.
- g) Type of document (DNI, passport, TIE).
- h) Nationality.
- i) Date of birth.
- j) Place of habitual residence. – Full address. – Locality. – Country.
- k) Landline phone.
- l) Mobile phone.
- m) Email address.
- n) Number of guests.
- o) Relationship between the guests (in the case that any are minors)."

The activity of renting apartments for tourist purposes carried out by RESIDENTIAL QUALITY ENJOY is included within the scope of application of RD 933/2021, according to its Article 2, which is directed at natural or legal persons who carry out accommodation activities.

The obligation to verify the accuracy of the personal data of the guests, as provided in Article 4.3 of RD 933/2021, must be fulfilled without the need to request the delivery of a copy or image of the identity document or a scan thereof, as there are other equally valid alternatives that allow for this verification to be carried out reliably.

The collection of the image or photocopy of their DNI (on both sides), passport, or other identity verification documents, constitutes a processing of personal data that exceeds those required in section 3 of Annex I.A of RD 933/2021, such as: the image of the traveler's face, the expedition number, or the names of the traveler's parents, regarding which there is no legal obligation for collection, registration, and communication. All of these would be personal data whose collection would constitute excessive processing, which is contrary to the data minimization principle provided for in Article 5.1.c) of the GDPR.

V

Unfulfilled obligation. Data minimization

Letter c) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

In this case, RESIDENTIAL QUALITY ENJOY, on August 7, 2023, sent a WhatsApp message to the claiming party in which it demanded "a photo of the IDs of the people who will stay in the apartment." The claiming party sent via email, on August 7, 2023, the image of all the IDs of the people who were going to stay in the apartment of RESIDENTIAL QUALITY ENJOY.

According to the provisions of the regulations set forth in Legal Basis IV, it is verified that it is not mandatory to collect, register, or communicate to the competent authorities the image, photocopy, or complete image of the identity document of each traveler, but only some of the data contained therein such as: name and surnames, identification number, support number, type of document (DNI; passport, etc.), nationality, and date of birth.

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For our constitutional jurisprudence, if the right to privacy acts as a barrier against interferences or intrusions by others (STC 142/1993, of 22/04), the right to data protection "consists of a power of disposition and control over personal data" (SSTC 290 and 292/2000, of 30/11); if the right to privacy prohibits third parties from knowing certain aspects of the person (intimate aspects or those related to their private and family life), the right to data protection provides guarantees of disposition and control regarding personal data that may or may not belong to the realm of intimacy and that may be subject to knowledge and handling by others; if the right to privacy is a right of abstention by others regarding

our personal sphere, the right to data protection implies above all self-determination over our data. It is worth mentioning the considerations regarding the principle of data minimization made by the European Data Protection Committee (EDPC), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as attributed to it by Article 70 of the GDPR), adopted on October 20, 2020, the Guidelines 4/2019 relating to Article 25 Data protection by design and by default (https://edpb.europa.eu/system/files/2021-04/edpb_guidelines_201904_dataprotection_by_design_and_by_default_v2.0_es.pdf).

In section 76 of these guidelines, it is established that

“Essential elements from design and by default regarding data minimization may include the following:

- Data avoidance: All processing of personal data will be avoided when possible to fulfill the relevant purpose.
- Limitation: The amount of personal data collected will be limited to what is strictly necessary for the intended purpose.

(...)

- Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate such relevance.
- Necessity: Each category of personal data will be necessary for the specified purposes and should only be processed if it is not possible to achieve the purpose by other means.”

From the application of these characteristics of the principle of data minimization, it follows that the collection of data, such as the image of the ID of its guests, carried out by RESIDENTIAL QUALITY ENJOY, cannot be justified, as this personal data collection is not mandatory, nor is it relevant to the processing in question, and must be limited to what is necessary to comply with the provisions of the regulations set forth in Legal Basis IV.

Therefore, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to RESIDENTIAL QUALITY ENJOY, for violation of the article transcribed above.

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VI

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein, and in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of

the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;

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b) the intent or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In this case, considering the seriousness of the possible infringement, particularly the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

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The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.c) of the GDPR, allows for the initial setting of an administrative fine of €2,000.00.

VIII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, under which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, the resolution adopted may require RESIDENTIAL QUALITY ENJOY to adopt the following measures within 2 months from the date of effectiveness of the resolution concluding this procedure:

- Modify its registration system so that a copy or image of the identity document of guests is not requested as a necessary requirement for accommodation.

- To certify that the photographs of the identity documents of its clients that are currently stored in its system have been deleted.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with a possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, if applicable, the voluntary payment of the proposed amounts, exempts from the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to certify compliance with this obligation before this AEPD.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against RESIDENTIAL QUALITY ENJOY, S.L., with NIF B72865363, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT A.A.A. as instructor and B.B.B. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of 2,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to RESIDENTIAL QUALITY ENJOY, S.L., with NIF B72865363, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

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In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be established at 1,600.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of the present procedure, make the voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be established at 1,200.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction. For these purposes, in case of opting for any of them, it must send to the General Subdirectorate for Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), it must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is opting.

Likewise, it must send the proof of payment to the General Subdirectorate for Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited. Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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The Deputy Director General of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the positions of President and Deputy President

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SECOND: On February 18, 2025, RESIDENTIAL QUALITY ENJOY proceeded to pay the fine in the amount of 1,200.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: RESIDENTIAL QUALITY ENJOY has expressly waived any action or administrative appeal against the fine.

FOURTH: The previously transcribed initiation agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 1,200.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, RESIDENTIAL QUALITY ENJOY has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or administrative appeal.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infractions and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 2,000.00 euros.

After RESIDENTIAL QUALITY ENJOY, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in a final amount of 1,200.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202313983, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER RESIDENTIAL QUALITY ENJOY, S.L. to notify the Agency within 2 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to RESIDENTIAL QUALITY ENJOY, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or waiver of any

administrative action or appeal by this authority, the express waiver stated by RESIDENTIAL QUALITY ENJOY, S.L. is accepted, and consequently, no appeal for reconsideration against this resolution may be lodged, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since no administrative appeal can be lodged due to the express waiver, this resolution will be final and fully enforceable from the date of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution may be provisionally suspended in the administrative route if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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